



General Assembly

February Session, 2026

Raised Bill No. 5147

LCO No. 1166



Referred to Committee on EDUCATION

Introduced by:
(ED)

***AN ACT IMPLEMENTING THE RECOMMENDATIONS OF THE
DEPARTMENT OF ADMINISTRATIVE SERVICES REGARDING THE
SCHOOL BUILDING PROJECTS STATUTES.***

Be it enacted by the Senate and House of Representatives in General Assembly convened:

1 Section 1. Section 10-285a of the 2026 supplement to the general
2 statutes is repealed and the following is substituted in lieu thereof
3 (*Effective July 1, 2026*):

4 (a) (1) The percentage of school building project grant money a local
5 board of education may be eligible to receive, under the provisions of
6 section 10-286, shall be assigned by the Commissioner of Administrative
7 Services in accordance with the percentage calculated by the
8 Commissioner of Education as follows: (A) For grants approved
9 pursuant to section 10-283 for which application is made on and after
10 July 1, 1991, and before July 1, 2011, (i) each town shall be ranked in
11 descending order from one to one hundred sixty-nine according to such
12 town's adjusted equalized net grand list per capita, as defined in section
13 10-261; and (ii) based upon such ranking, a percentage of not less than
14 twenty nor more than eighty shall be determined for each town on a

15 continuous scale; (B) for grants approved pursuant to section 10-283 for
16 which application is made on and after July 1, 2011, and before July 1,
17 2017, (i) each town shall be ranked in descending order from one to one
18 hundred sixty-nine according to such town's adjusted equalized net
19 grand list per capita, as defined in section 10-261, and (ii) based upon
20 such ranking, (I) a percentage of not less than ten nor more than seventy
21 shall be determined for new construction or replacement of a school
22 building for each town on a continuous scale, and (II) a percentage of
23 not less than twenty nor more than eighty shall be determined for
24 renovations, extensions, code violations, roof replacements and major
25 alterations of an existing school building and the new construction or
26 replacement of a school building when a town or regional school district
27 can demonstrate that a new construction or replacement is less
28 expensive than a renovation, extension or major alteration of an existing
29 school building for each town on a continuous scale; (C) for grants
30 approved pursuant to section 10-283 for which application is made on
31 and after July 1, 2017, and before June 1, 2022, (i) each town shall be
32 ranked in descending order from one to one hundred sixty-nine
33 according to the adjusted equalized net grand list per capita, as defined
34 in section 10-261, of the town two, three and four years prior to the fiscal
35 year in which application is made, (ii) based upon such ranking, (I) a
36 percentage of not less than ten nor more than seventy shall be
37 determined for new construction or replacement of a school building for
38 each town on a continuous scale, and (II) a percentage of not less than
39 twenty nor more than eighty shall be determined for renovations,
40 extensions, code violations, roof replacements and major alterations of
41 an existing school building and the new construction or replacement of
42 a school building when a town or regional school district can
43 demonstrate that a new construction or replacement is less expensive
44 than a renovation, extension or major alteration of an existing school
45 building for each town on a continuous scale; (D) except as otherwise
46 provided in subdivision (2) of this subsection, for grants approved
47 pursuant to section 10-283 for which application is made on and after
48 June 1, 2022, (i) each town shall be ranked in descending order from one

49 to one hundred sixty-nine according to the adjusted equalized net grand
50 list per capita, as defined in section 10-261, of the town two, three and
51 four years prior to the fiscal year in which application is made, and (ii)
52 based upon such ranking, (I) a percentage of not less than ten nor more
53 than seventy shall be determined for new construction or replacement
54 of a school building for each town on a continuous scale, and (II) a
55 percentage of not less than twenty nor more than eighty shall be
56 determined for renovations, extensions, code violations, roof
57 replacements and major alterations of an existing school building and
58 the new construction or replacement of a school building when a town
59 or regional school district can demonstrate that a new construction or
60 replacement is less expensive than a renovation, extension or major
61 alteration of an existing school building for each town on a continuous
62 scale; and (E) except as otherwise provided in subdivision (2) of this
63 subsection, for grants approved pursuant to section 10-283 for which
64 application is made on and after July 1, 2024, (i) each town shall be
65 ranked in descending order from one to one hundred sixty-nine
66 according to the adjusted equalized net grand list per capita, as defined
67 in section 10-261, of the town two, three and four years prior to the fiscal
68 year in which application is made, and (ii) based upon such ranking, (I)
69 a percentage of not less than ten nor more than eighty shall be
70 determined for new construction or replacement of a school building for
71 each town on a continuous scale, and (II) a percentage of not less than
72 twenty nor more than eighty shall be determined for renovations,
73 extensions, code violations, roof replacements and major alterations of
74 an existing school building and the new construction or replacement of
75 a school building when a town or regional school district can
76 demonstrate that a new construction or replacement is less expensive
77 than a renovation, extension or major alteration of an existing school
78 building for each town on a continuous scale.

79 (2) For grants approved pursuant to section 10-283 for which
80 application is made prior to July 1, 2047, the percentage of school
81 building project grant money a local board of education for (A) any

82 town with a total population of eighty thousand or greater may be
83 eligible to receive shall be the greater of the percentage calculated
84 pursuant to subdivision (1) of this subsection or sixty per cent, and (B)
85 the town of Cheshire shall be the greater of the percentage calculated
86 pursuant to subdivision (1) of this subsection or fifty per cent.

87 (b) (1) Except as otherwise provided in subdivision (2) of this
88 subsection, the percentage of school building project grant money a
89 regional board of education may be eligible to receive under the
90 provisions of section 10-286 shall be determined by its ranking. Such
91 ranking shall be determined by (A) multiplying the total population, as
92 defined in section 10-261, of each town in the district by such town's
93 ranking, as determined in subsection (a) of this section, (B) adding
94 together the figures determined under subparagraph (A) of this
95 subdivision, and (C) dividing the total computed under subparagraph
96 (B) of this subdivision by the total population of all towns in the district.
97 The ranking of each regional board of education shall be rounded to the
98 next higher whole number and each such board shall receive the same
99 reimbursement percentage as would a town with the same rank plus ten
100 per cent, except that no such percentage shall exceed eighty-five per
101 cent.

102 (2) Any board of education of a regional school district established or
103 expanded on or after July 1, 2016, that submits an application for a
104 school building project (A) not later than ten years after the
105 establishment or expansion of such regional school district, and (B) that
106 is related to such establishment or expansion, may be eligible to receive
107 a percentage of school building project grant money, under the
108 provisions of section 10-286, as follows: The reimbursement percentage
109 of the town in such regional school district with the greatest
110 reimbursement percentage, as determined in subsection (a) of this
111 section, plus ten per cent.

112 (c) The percentage of school building project grant money a regional
113 educational service center may be eligible to receive shall be determined

114 by its ranking. Such ranking shall be determined by (1) multiplying the
115 population of each member town in the regional educational service
116 center by such town's ranking, as determined in subsection (a) of this
117 section; (2) adding together the figures for each town determined under
118 subdivision (1) of this subsection, and (3) dividing the total computed
119 under subdivision (2) of this subsection by the total population of all
120 member towns in the regional educational service center. The ranking
121 of each regional educational service center shall be rounded to the next
122 higher whole number and each such center shall receive the same
123 reimbursement percentage as would a town with the same rank.

124 (d) The percentage of school building project grant money a
125 cooperative arrangement pursuant to section 10-158a, may be eligible to
126 receive shall be determined by its ranking. Such ranking shall be
127 determined by (1) multiplying the total population, as defined in section
128 10-261, of each town in the cooperative arrangement by such town's
129 ranking, as determined in subsection (a) of this section, (2) adding the
130 products determined under subdivision (1) of this subsection, and (3)
131 dividing the total computed under subdivision (2) of this subsection by
132 the total population of all towns in the cooperative arrangement. The
133 ranking of each cooperative arrangement shall be rounded to the next
134 higher whole number and each such cooperative arrangement shall
135 receive the same reimbursement percentage as would a town with the
136 same rank plus ten percentage points.

137 (e) (1) If an elementary school building project for a new building or
138 for the expansion of an existing building includes space for an early
139 childhood care and education program that provides services for
140 children from birth to five years, the percentage determined pursuant to
141 this section for the entire school building project shall be increased by
142 fifteen percentage points, but shall not exceed one hundred per cent.
143 Recipient districts shall maintain such early childhood care and
144 education program for at least ten years.

145 (2) The percentage determined pursuant to this section for any school

146 building project for a building or facility that will be used exclusively by
147 a local or regional board of education for an early childhood care and
148 education program that provides services for children from birth to five
149 years shall be increased by fifteen percentage points, but shall not
150 exceed one hundred per cent. Recipient districts shall maintain such
151 early childhood care and education program for at least twenty years.

152 (f) The percentage determined pursuant to this section for a school
153 building project grant for the expansion, alteration or renovation of an
154 existing public school building to convert such building for use as a
155 lighthouse school, as defined in section 10-266cc, shall be increased by
156 ten percentage points.

157 (g) The percentage determined pursuant to this section for a school
158 building project grant shall be increased by the percentage of the total
159 projected enrollment of the school attributable to the number of spaces
160 made available for out-of-district students participating in the program
161 established pursuant to section 10-266aa, provided the maximum
162 increase shall not exceed ten percentage points.

163 (h) Subject to the provisions of section 10-285d, if an elementary
164 school building project for a school in a priority school district or for a
165 priority school is necessary in order to offer a full-day kindergarten
166 program or a full-day preschool program or to reduce class size
167 pursuant to section 10-265f, the percentage determined pursuant to this
168 section shall be increased by fifteen percentage points, but shall not
169 exceed one hundred per cent, for the portion of the building used
170 primarily for such full-day kindergarten program, full-day preschool
171 program or such reduced size classes. Recipient districts that receive an
172 increase pursuant to this subsection in support of a full-day preschool
173 program shall maintain full-day preschool enrollment for at least ten
174 years.

175 (i) For all projects authorized on or after July 1, 2007, all attorneys'
176 fees and court costs related to litigation shall be eligible for state school

177 construction grant assistance only if the grant applicant is the prevailing
178 party in any such litigation.

179 (j) The percentage determined pursuant to this section for a school
180 building project grant for a diversity school, approved pursuant to
181 section 10-286h, shall be increased by ten percentage points.

182 (k) If a school building project for a new building or for the
183 renovation or expansion of an existing building includes plans for the
184 expansion or creation of in-district special education programming and
185 services, the percentage determined pursuant to this section shall be
186 increased by fifteen percentage points, but shall not exceed one hundred
187 per cent, for the portion of the project used primarily for such purpose,
188 provided the portion of such school building project that will be used
189 primarily for such in-district special education programming and
190 services shall be a part of a school building that is being used to provide
191 a program of general education for nonspecial education students and
192 is a part of the school building being constructed or renovated or
193 expanded; and, provided further, any additional funding received by
194 the local or regional board of education resulting from and related to the
195 inclusion of such plans for the expansion or creation of in-district special
196 education programming and services shall be expended for such
197 construction or renovation or expansion.

198 (l) On and after July 1, 2026, for applications submitted pursuant to
199 subsection (a) of section 10-283, the reimbursement percentage of school
200 building project that a local or regional board of education or an
201 endowed academy approved pursuant to section 10-34 shall be
202 increased by five percentage points, provided such increase shall not
203 result in a reimbursement percentage exceeding one hundred per cent,
204 if the municipality (1) is in compliance with the provisions of section 8-
205 13bb regarding its housing growth plan or compliance with a regional
206 housing growth plan, as applicable, and has demonstrated steps such
207 municipality has taken to implement its housing growth policies, (2) is
208 a qualifying transit-oriented community pursuant to section 8-13hh, or

209 (3) has adopted a development district established pursuant to a
210 memorandum of agreement with the Connecticut Municipal
211 Development Authority.

212 (m) Notwithstanding any provision of the general statutes, the
213 percentage determined pursuant to this section for a school building
214 project grant shall not exceed one hundred per cent.

215 Sec. 2. Section 10-292q of the general statutes is repealed and the
216 following is substituted in lieu thereof (*Effective from passage*):

217 (a) There is established a [School Building Projects Advisory Council]
218 School Safety and Security Infrastructure Advisory Council. The council
219 shall consist of: (1) The Secretary of the Office of Policy and
220 Management, or the secretary's designee, (2) the Commissioner of
221 Administrative Services, or the commissioner's designee, (3) the
222 Commissioner of Education, or the commissioner's designee, (4) the
223 Commissioner of Emergency Services and Public Protection, or the
224 commissioner's designee, (5) the chairperson of the Technical Education
225 and Career System board, or the chairperson's designee, and (6) six
226 members appointed by the Governor, one of whom shall be a person
227 with experience in school [building] safety and security infrastructure
228 project matters, one of whom shall be a person with experience in
229 [architecture] school safety and security planning, one of whom shall be
230 a person with experience in [engineering] school physical infrastructure
231 hardening, one of whom shall be a person from higher education with
232 experience in [school] campus safety, one of whom shall be a [person
233 with experience with the administration of the State Building Code]
234 representative of a rural school district, and one of whom shall be a
235 [person with experience and expertise in construction for students with
236 disabilities and the accessibility provisions of the Americans with
237 Disabilities Act, 42 USC 12101 et seq. The] representative of an urban
238 school district. The terms for those members appointed under
239 subdivision (6) of this subsection before the effective date of this section
240 shall expire on June 30, 2026, and the members appointed under said

241 subdivision shall be appointed not later than September 1, 2026.

242 (b) (1) Prior to the effective date of this act, (A) the chairperson of the
243 council shall be the Commissioner of Administrative Services, or the
244 commissioner's designee; [A] and (B) a person employed by the
245 Department of Administrative Services who is responsible for school
246 building projects shall serve as the administrative staff of the council.

247 (2) On and after the effective date of this act, (A) the chairperson of
248 the council shall be the Commissioner of Emergency Services and Public
249 Protection, or the commissioner's designee; and (B) a person employed
250 by the Department of Emergency Services and Public Protection shall
251 serve as the administrative staff of the council.

252 (3) The council shall meet at least quarterly to discuss matters relating
253 to school [building] safety and security infrastructure projects.

254 [(b)] (c) The [School Building Projects Advisory Council] council shall
255 (1) develop [model blueprints for new school building]
256 recommendations regarding school safety and security infrastructure
257 projects that are in accordance with industry standards for school
258 [buildings and the school safety infrastructure criteria, developed
259 pursuant to section 10-292r] safety and security infrastructure, (2)
260 conduct studies, research and analyses related to school safety and
261 security infrastructure, (3) make recommendations for improvements to
262 the school [building projects] safety and security grant processes,
263 including eligibility criteria, to the Governor and the joint standing
264 [committee] committees of the General Assembly having cognizance of
265 matters relating to [appropriations and the budgets of state agencies,]
266 education and [finance, revenue and bonding] public safety, and (4)
267 periodically review and update, as necessary, the school safety
268 infrastructure criteria developed pursuant to section 10-292r.

This act shall take effect as follows and shall amend the following sections:
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Section 1	<i>July 1, 2026</i>	10-285a
Sec. 2	<i>from passage</i>	10-292q

Statement of Purpose:

To cap the total reimbursement percentage a board of education may receive under the school building project grant program at one hundred per cent and to make revisions to the responsibilities of the School Building Projects Advisory Council to focus on school safety.

[Proposed deletions are enclosed in brackets. Proposed additions are indicated by underline, except that when the entire text of a bill or resolution or a section of a bill or resolution is new, it is not underlined.]